

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S OPPOSITION TO
RESPONDENT'S SEPTEMBER 14, 2026 NOTIFICATION TO THE PROCEEDING
(DKT. 56) REGARDING DEEMED ADMISSIONS UNDER 46 C.F.R. § 502.147**

Complainant Southern International Co., Ltd. ("**SIC**"), through its Director and authorized corporate representative, Nguyen Tien Phuong, submits this Opposition to Respondent Daynamez Group of Companies LLC's ("**Daynamez**") September 14, 2026 "Notification to the Proceeding" (Dkt. 56) (the "**Notice**"). This filing addresses only the effect of Daynamez's untimely responses to SIC's Second Requests for Admission ("**Second RFAs**") and the relief sought in Dkt. 56. SIC does not object to the Presiding Officer considering the September 8 responses; it objects to treating them as automatically displacing admissions arising under 46 C.F.R. § 502.147(a)(3), or as reviving objections waived by Dkt. 54, without application of the procedural and substantive standards governing the relief actually sought, including Rule 502.102(b) if Dkt. 56 is treated as a request to accept late show-cause compliance and Rule 502.147(b) if it is treated as a request to withdraw or amend admissions.

SIC served Second RFAs Nos. 25-110 on July 14, 2026. Daynamez did not timely respond. On August 27, 2026, the Presiding Officer found no good cause for that failure, held Daynamez's objections to the Second Discovery waived, ordered substantive responses by September 8, and separately ordered Daynamez to show cause by September 8 why the Second RFAs should not be deemed admitted. Dkt. 54 at 1, 5, 7.

Daynamez served substantive responses on September 8, but those responses do not identify themselves as a show-cause submission, invoke Rule 502.147(b), or request withdrawal or amendment of any admission. On September 14, Daynamez filed Dkt. 56 and asked that its responses be "allowed." Dkt. 56 ¶ 11 (at 3). The Notice also attributes Rule 502.147(b)'s withdrawal-and-amendment language to Rule 502.147(a)(3).



SIC therefore asks the Presiding Officer to reject any blanket withdrawal or amendment; leave Dkt. 54's waiver ruling undisturbed; give effect to the matters Daynamez expressly admitted; and recognize that SIC does not rely in this Opposition on the deemed-admission effect of RFA No. 73 as presently drafted. SIC reserves any request for narrowly tailored curative relief for a separate filing if later made necessary by a ruling permitting withdrawal, amendment, or reliance on new factual assertions.

I. RELEVANT PROCEDURAL BACKGROUND

The Second RFAs were directed largely to identified communications, payment records, carrier records, and prior Daynamez discovery statements. SIC's instructions expressly distinguished admitting what a document "states," "identifies," or "reflects" from admitting the truth, completeness, admissibility, legal effect, or enforceability of a third-party statement or document.

After Daynamez failed to respond, SIC moved to compel. Dkt. 54 found no good cause, waived objections, compelled responses, imposed the separate show-cause requirement, warned of possible sanctions for noncompliance, and extended discovery to October 23, 2026. Dkt. 54 at 1, 5, 7.

On September 11, SIC asked counsel whether Daynamez had filed or served anything intended to satisfy Dkt. 54's show-cause directive and, alternatively, whether Daynamez contended that the September 8 responses themselves constituted the required showing or a request under Rule 502.147(b). SIC requested a substantive response by September 14. Exhibit B. Dkt. 56 followed.

On September 15, SIC also conferred in good faith to narrow the dispute and address possible separate curative relief. SIC stated that it did not seek to reopen discovery generally and requested Daynamez's position by 6:00 a.m. EDT on September 16. Daynamez did not respond. SIC rechecked its mailbox through 11:56 a.m. Vietnam time on September 17 (12:56 a.m. EDT) and had received no response. The September 15 email is Exhibit A.

The September 8 RFA responses contain many express admissions, including admissions concerning rate transmission, Net/Net pricing, payment and SWIFT instructions, bill-of-lading instructions, booking confirmations, arrival-notice communications, payment flows, pay-direct transactions, and demurrage-offset communications. See, e.g., Sept. 8 RFA Responses, RFAs 27, 30, 33-38, 43-61, 101-110.

The responses also add affirmative factual narratives concerning Daynamez's carrier accounts and capabilities, downstream-provider roles, a USD 38,665 Maersk payment, the asserted absence of Hapag-Lloyd transactions, and an asserted accounting of incoming wires, outgoing wires, and retained profit. SIC treats those statements as Daynamez's contentions, not verified facts accepted by SIC. Their relevance here is limited to the Rule 502.147(b) analysis and potential prejudice if they are permitted to alter the effect of deemed admissions.

II. GOVERNING STANDARD

Rule 502.147(a)(3) provides that a matter is admitted unless the responding party serves a written answer or objection within 30 days, absent stipulation or order changing the time. Once admitted, the matter is “conclusively established” unless, “on motion,” the Presiding Officer permits withdrawal or amendment. 46 C.F.R. § 502.147(b). Withdrawal or amendment may be permitted if it would promote the presentation of the merits and if the Presiding Officer is not persuaded that it would prejudice the requesting party in maintaining or defending the action on the merits.

Commission precedent gives unanswered admissions their prescribed effect. *See OC Int’l Freight, Inc.; OMJ Int’l Freight, Inc.; & Omar Collado*, Dkt. No. 12-01, 32 S.R.R. 1783, 1790–91 (FMC July 22, 2013) (holding unanswered RFAs conclusively established under former 46 C.F.R. § 502.207(b), predecessor to current § 502.147(b)). Federal Rule 36 decisions are persuasive in interpreting analogous concepts where consistent with Commission Rule 502.147, particularly because Commission discovery procedures, to the extent practicable, conform to the Federal Rules. 46 U.S.C. § 41303(a)(2); *see Perez v. Miami-Dade Cnty.*, 297 F.3d 1255, 1264–68 (11th Cir. 2002); *Smith v. First Nat’l Bank of Atlanta*, 837 F.2d 1575, 1577–78 (11th Cir. 1988); *see also* 46 C.F.R. § 502.12 (applying the Federal Rules in situations not covered by a specific Commission rule). Rule 36(b) prejudice concerns special difficulties caused by a sudden need to obtain evidence upon withdrawal or amendment, not merely the burden of proving a matter previously admitted. *Am. Auto. Ass’n v. AAA Legal Clinic of Jefferson Crooke, P.C.*, 930 F.2d 1117, 1120 (5th Cir. 1991). *Smith* further illustrates that, when withdrawal of admissions is permitted, contemporaneous discovery and scheduling protections may appropriately be used to prevent prejudice to the requesting party. *See Smith*, 837 F.2d at 1577–78 (reopening discovery for sixty days and preserving further relief if the delay impaired the plaintiff’s ability to obtain appropriate discovery).

A request for an order or ruling must be made by motion and state the relief, grounds, authority, and supporting facts. 46 C.F.R. § 502.69(a), (e); Initial Order, Dkt. 5 ¶¶ 16–17. All other motions, including discovery-related motions, are non-dispositive. *See* 46 C.F.R. § 502.69(g). Non-dispositive motions require prefiling conferral. 46 C.F.R. § 502.71(a). A motion submitted after a filing deadline is treated as a request to accept a late filing and is considered only when exceptional circumstances are shown or as justice may require. 46 C.F.R. § 502.102(b).

III. ARGUMENT

A. The Second RFAs became admitted under Rule 502.147(a)(3), and Dkt. 54 did not retroactively erase that consequence.

The Second RFAs were served July 14, and no timely response was served. The matters therefore became admitted under Rule 502.147(a)(3). Dkt. 54 did not purport to retroactively extend the original RFA deadline. Instead, after finding no good cause and waiving objections, it required substantive responses by September 8 and separately required Daynamez to show cause by that date why the RFAs should not be deemed admitted.

Daynamez's September 8 service addressed the compelled-response deadline, but did not, by itself, establish compliance with the separate show-cause directive or extinguish admissions arising under Rule 502.147(a)(3). To the extent Dkt. 56 seeks to alter the conclusive effect of those admissions, the request must be evaluated under Rule 502.147(b), regardless of its label. *See Kerry Steel, Inc. v. Paragon Indus., Inc.*, 106 F.3d 147, 153–54 (6th Cir. 1997).

B. Dkt. 56 does not satisfy the procedural requirements applicable under either possible characterization of the relief it seeks.

Dkt. 56 is not merely informational: it asks the Presiding Officer to “allow” Daynamez’s late responses. Yet it is styled as a “Notification,” contains no Rule 502.71(a) conferral statement, and does not identify which admissions Daynamez seeks to withdraw or amend. SIC does not rely on the caption alone. If the filing is treated as a functional Rule 502.147(b) motion, however, the applicable motion rules and Rule 502.147(b) still govern. *See Kerry Steel*, 106 F.3d at 153–54.

The Notice also conflates subsections (a)(3) and (b): subsection (a)(3) governs the consequence of failing to respond; subsection (b) governs later withdrawal or amendment of an admission. Treating September 8 service as a simple extension would collapse that distinction.

Alternatively, if Dkt. 56 is offered as Dkt. 54’s show-cause submission, it was filed after the September 8 deadline. It does not invoke Rule 502.102(b), expressly request acceptance of a late show-cause filing, identify exceptional circumstances, or explain why acceptance is otherwise required “as justice may require.” Its generalized burden assertions substantially repeat matters already before the Presiding Officer when Dkt. 54 found no good cause. Under either characterization, September 8 service does not by itself resolve the admissions issue.

C. Dkt. 54’s waiver ruling remains operative, and Daynamez cannot revive waived objections through its September 8 response language.

Dkt. 54 expressly held Daynamez’s objections to the Second Discovery waived. Nevertheless, the September 8 responses assert “General Objections,” repeatedly answer “subject to” objections, and end with counsel’s adoption of those objections. Sept. 8 Consolidated Responses at 3–4, 70. Those unilateral reservations do not modify Dkt. 54. SIC does not ask here for adjudication of any specific attorney-client privilege, work-product protection, or other protection the Presiding Officer may determine survives the waiver ruling.

SIC does not contend that every qualification is improper. Its own Instruction No. 9 distinguishes admitting what a record says from admitting the truth or legal effect of a third-party statement. Commission Rule 502.147(a)(4) likewise recognizes that, when good faith requires, an answer may be qualified or may admit only part of a matter. *See* 46 C.F.R. § 502.147(a)(4). But a narrative that qualifies, narrows, contradicts, or otherwise alters a deemed admission cannot be given that effect without Rule 502.147(b). *See Am. Auto. Ass’n*, 930 F.2d at 1119–20 (holding that an admission not withdrawn or amended on motion is conclusively established, may not be rebutted by contrary evidence or disregarded, and that the same effect attaches to admissions arising from a failure to respond). An independent factual assertion that does not alter

the admitted matter is different; SIC submits only that such a late assertion is not thereby established and may warrant separate, narrowly tailored relief if reliance on it is permitted.

D. Dkt. 56 does not provide a sufficient basis for blanket withdrawal or amendment.

The Notice asks generally that Daynamez's responses be "allowed" and says there is no prejudice, but it does not identify the admissions to be altered or supply a sufficient record for the required merits-and-prejudice analysis. Dkt. 56 itself states that "there were admissions," states that the responses will not adversely affect the proceeding "as they are admissions," and asks that the responses be "allowed." Dkt. 56 ¶¶ 7, 9, 11. Many documentary propositions identified in the September 8 responses are therefore expressly admitted, subject to the precise scope of those admissions; Daynamez remains free to contest their legal significance without withdrawing the admissions themselves.

SIC further narrows the dispute as to RFA No. 73. Because that request contains an internal count-and-aggregation defect concerning the payments referenced in RFAs 61–72, SIC does not rely in this Opposition on the deemed-admission effect of RFA No. 73 as presently drafted and does not rely on its aggregate proposition here. SIC does not waive the individual admissions in RFAs 62–72, the communications and payment instructions in RFAs 57–61, or the underlying transaction evidence.

E. Late factual narratives require a careful prejudice analysis.

The prejudice inquiry is materially different for factual narratives first added after the RFA deadline and Dkt. 54's waiver ruling. If such narratives are permitted to narrow, contradict, or otherwise alter deemed admissions, SIC may face a sudden need to obtain source evidence. Rule 36(b) prejudice concerns special difficulties caused by a sudden need to obtain evidence upon withdrawal or amendment, not merely the burden of proving a matter previously admitted. *See Am. Auto. Ass'n*, 930 F.2d at 1120. *Smith* illustrates that additional discovery can mitigate such prejudice when late responses or withdrawal are permitted. *Smith*, 837 F.2d at 1577–78.

That timing concern is concrete here because Dkt. 54 sets October 23, 2026 as the close of discovery. If the Presiding Officer permits withdrawal or amendment of any deemed admission, or permits Daynamez to rely on factual assertions first advanced in its September 8 responses in a manner that creates a need for source-record discovery, SIC respectfully submits that the resulting order should preserve SIC's opportunity promptly to seek narrowly tailored curative relief before the existing discovery schedule forecloses a fair opportunity to test those assertions.

IV. CONCLUSION AND REQUESTED RELIEF

For these reasons, SIC respectfully requests that the Presiding Officer: (1) construe Dkt. 56, if it seeks adjudicative relief, under the rules applicable to that relief; (2) reject any contention that September 8 service automatically displaced admissions arising under Rule 502.147(a)(3); (3) to the extent Dkt. 56 is treated as a motion or request to accept late compliance with Dkt. 54's show-cause directive, apply Rule 502.102(b); (4) if it is treated as a motion to withdraw or amend admissions, apply Rules 502.69, 502.71, and 502.147(b) and deny blanket relief absent an adequate Rule 502.147(b) showing as to the admissions Daynamez seeks to alter; (5) leave Dkt. 54's waiver ruling in force, subject to any specific privilege or protection the Presiding Officer

determines remains applicable; (6) give effect to the precise matters Daynamez expressly admitted while permitting the parties to litigate their legal significance; (7) recognize that SIC does not rely in this Opposition on the deemed-admission effect of RFA No. 73 as presently drafted, without prejudice to the underlying individual admissions and transaction evidence; and (8) if the Presiding Officer permits withdrawal or amendment of any deemed admission, or permits Daynamez to rely on factual qualifications or additional factual assertions first advanced in its September 8 responses in a manner that creates a need for source-record discovery, provide that such relief is without prejudice to SIC's opportunity promptly to seek narrowly tailored curative relief and, if necessary, a limited adjustment of the October 23, 2026 discovery deadline solely to permit that issue to be fairly addressed.

SIC does not seek sanctions or an order compelling additional discovery through this Opposition. SIC seeks only application of Rule 502.147, Dkt. 54, and the applicable motion and late-filing rules, together with appropriate protection against prejudice if the Presiding Officer permits Daynamez to alter the effect of deemed admissions or to rely on factual assertions first advanced after the original RFA deadline.

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



By: _____

Nguyen Tien Phuong

Director and Authorized Corporate Representative,
Southern International Co., Ltd.

64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam

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Dated: September 18, 2026

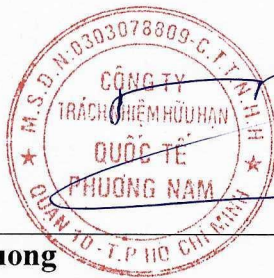
VERIFICATION

I, Nguyen Tien Phuong, declare that I am the Director and authorized corporate representative of Southern International Co., Ltd. I have read the foregoing Opposition, and the factual statements contained therein are true and correct to the best of my knowledge, information, and belief after reasonable inquiry.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 18 2026, in Ho Chi Minh City, Vietnam.

SOUTHERN INTERNATIONAL CO., LTD.



By: _____

Nguyen Tien Phuong

Director and Authorized Corporate Representative

64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam

Email: southern@southern.com.vn;

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Dated: September 18, 2026

CERTIFICATE OF SERVICE

I hereby certify that on September 18, 2026, I served the foregoing Complainant Southern International Co., Ltd.'s Opposition to Respondent's September 14, 2026 Notification to the Proceeding (Dkt. 56), together with Exhibits A and B, by electronic mail upon Respondent through its counsel of record:

Daniel W. Raab, Esq.
Law Offices Daniel W. Raab, P.A.
9555 North Kendall Drive, Suite 210
Miami, Florida 33176
Email: raabdaniel57@gmail.com; raabd@bellsouth.net

Courtesy copy:
Zia Kamali
Email: kamali@daynamez.com

Filed with:
Secretary, Federal Maritime Commission
Email: secretary@fmc.gov

Courtesy copy:
Office of Administrative Law Judges
Email: judges@fmc.gov

SOUTHERN INTERNATIONAL CO., LTD.



By: _____

Nguyen Tien Phuong

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Dated: September 18, 2026



EXHIBIT A

Nam Nguyen

From: Phuong Nguyen
Sent: Tuesday, September 15, 2026 5:22 PM
To: Daniel Raab; raabd@bellsouth.net; 'Zia Kamali'
Cc: Legal Team; Nam Nguyen
Subject: FMC Docket No. 25-24 – Conferral Regarding Alternative Limited Written Curative Discovery

Dear Mr. Raab,

SIC intends to file a response opposing Daynamez’s September 14, 2026 Notification to the Proceeding concerning Dkt. 54.

In that filing, SIC anticipates requesting the following limited alternative relief: **if the Presiding Officer permits Daynamez to withdraw or amend any admissions, or otherwise permits Daynamez to rely on factual qualifications or additional factual assertions contained in its September 8 responses, SIC requests permission to conduct narrowly tailored written curative discovery limited to the source documents and records necessary to test those factual assertions, together with any limited modification of the discovery schedule that may be necessary solely to permit such curative discovery.**

SIC does not seek to reopen discovery generally.

Pursuant to 46 C.F.R. § 502.71(a), please advise whether Daynamez opposes this limited alternative relief.

Please respond by 6:00 AM. Eastern Daylight Time on Wednesday, September 16, 2026.

This conferral does not constitute SIC’s agreement with the September 14 Notice, consent to withdrawal or amendment of any admission, acceptance of any factual qualification or additional factual assertion in Daynamez’s September 8 responses, or waiver of any rights or arguments under Dkt. 54, 46 C.F.R. § 502.147, or applicable law.

Sincerely,

Thanks & Best Regards



Mr. Nguyen Tien Phuong
Director

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EXHIBIT B

Nam Nguyen

From: Phuong Nguyen
Sent: Friday, September 11, 2026 3:18 PM
To: raabdaniel57@gmail.com
Cc: Zia Kamali; Nam Nguyen; Legal Team
Subject: FMC Docket No. 25-24 – Dkt. 54 Show-Cause Compliance and September 8, 2026 ResponsesDear Mr. Raab,

Dear Mr. Raab,

SIC acknowledges receipt of Daynamez's September 8, 2026 consolidated responses to SIC's Second Interrogatories, Second Requests for Production, and Second Requests for Admission.

SIC does not agree that service of those responses, by itself, resolves the consequences of Daynamez's failure to timely respond to SIC's Second Requests for Admission. SIC does not consent to any withdrawal or amendment of admissions arising under 46 C.F.R. § 502.147 and expressly reserves all rights under Dkt. 54 and 46 C.F.R. §§ 502.147 and 502.150.

Dkt. 54 separately directed Daynamez, by September 8, 2026, to show cause why SIC's Second Requests for Admission should not be deemed admitted based on Daynamez's failure to timely respond. SIC has not received any additional filing or service that identifies itself as satisfying that directive, and the September 8 consolidated responses do not appear to explain the untimely RFA responses or expressly request withdrawal or amendment under 46 C.F.R. § 502.147(b).

Accordingly, please confirm whether Daynamez filed and served, on or before September 8, 2026, any submission intended to comply with the show-cause directive in Dkt. 54. If so, please provide a copy of that submission together with available proof of filing and service.

If Daynamez instead contends that its September 8 consolidated responses themselves constitute the showing required by Dkt. 54, or constitute a request to withdraw or amend any admissions arising under § 502.147, please confirm that position and identify the procedural basis on which Daynamez relies.

Given the current discovery schedule and SIC's need to determine promptly whether further relief from the Presiding Officer is necessary, please provide Daynamez's substantive written response, together with any supporting filing or service documentation, **no later than 12:00 p.m. Eastern Time on Monday, September 14, 2026.**

If SIC does not receive a substantive response by that time, SIC will consider the meet-and-confer process concerning this issue unsuccessful and will proceed, based on the record then available, to determine whether appropriate relief should be sought from the Presiding Officer.

This requested response time is solely for purposes of this good-faith conferral. It does not extend, modify, or waive any deadline established by Dkt. 54 or the Commission's Rules, and SIC reserves all rights.

Regards,

Thanks & Best Regards

Mr. Nguyen Tien Phuong
Director

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"Your success is our success"



